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File No.: EXP202205446
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-RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated 16/01/2024, EXP202205446, and based on the following

FACTS

FIRST: On 31/03/2022, a complaint was received by this Agency against A.A.A., in which it is stated that

“The respondent has published on YouTube (link provided ***URL.1) a video corresponding to the recording of a prior videoconference held on ***DATE.1 (which was later archived due to the withdrawal of the claimants) to which they had access as a party intervening as the respondent in the process (Court of First Instance XX of Valencia - ordinary procedure ***NUMBER.1). In the video, the personal data of the intervening parties (name, surname, position, image, and voice) appear, including that of the claimant.”

“On the other hand, it is also reported that a document submitted by the respondent to the Court in said procedure, a ‘note of evidence’ ‘which includes data’, is published, indicating that it is hosted on two links that it reproduces.”

SECOND: On 16/01/2024, after processing the procedure, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing

“FIRST: TO IMPOSE on D.A.A.A., with NIF ***NIF.1, for an infringement of article 5.1.b) of the GDPR, classified in article 83.5 a) of the GDPR, and for prescription purposes, qualified as very serious in article 72.1 a) of the LOPDGDD, a fine of 10,000 euros.

SECOND: TO ORDER D. A.A.A., with NIF ***NIF.1, that pursuant to article 58.2.d) of the GDPR, within fifteen days, prove compliance with the provisions set forth in legal basis VII.

After the granted time, they must inform this AEPD.

It is warned that failure to comply with the requirement may result in the commission of an infringement of article 83.6 of the GDPR.”

It is noted that the date of delivery of the resolution, the date of access to the content of the electronic notification, is 20/01/2024.

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THIRD: As proven facts, it was established:

FIRST: D. B.B.B., the claimant, filed a complaint on 31/03/2022, against D. A.A.A., the respondent, because the telematic videoconference of a preliminary hearing of an ordinary civil trial for intrusion into honor (procedural act held on ***DATE.1 in the Court of First Instance XX of Valencia, ordinary procedure ***NUMBER.1) is exposed on YOUTUBE, at the URL ***URL.1, providing a certificate from the company eGarante dated 14/10/2021. Below the video is the document that the respondent addressed to the Court containing the names and surnames of the claimants and at the end, the mention of the order that was issued after this hearing, dated ***DATE.2.

The claimant provided a copy of the video in which the procedural session held remotely is seen, with the representative of the respondent alongside the claimant, judge, secretary, and prosecutor in the judicial venue where the act is held. The video contains the identification of the procedure, the date and time, and a duration of 24 minutes and thirteen seconds, and it also includes the intervention of the parties, among them the voice of the claimant and their explanations.

The judge, after commenting on the exceptions in response to the respondent's claim, discusses the

defects in the claim's presentation, and the claimant (herein referred to as the appellant) decides to withdraw.

SECOND: The claimant also points out that at the address ***URL.2 the same content of the document that appears below the video on YOUTUBE, which the claimant addressed to the Court for the preliminary hearing of procedure ***NUMBER.1, containing the names and surnames of the claimant and the claimants, is found. On 03/05/2022, it was confirmed that the document existed on that website.

THIRD: On 10/05/2022, after the filing of the complaint, access was possible at the address: ***URL.3 to the profile of A.A.A. on YOUTUBE, with one of the uploaded videos coinciding with the one provided by the claimant as verified by the Sub-Directorate General for Data Inspection, in which the document (...) pdf is also seen in the link and in the screenshot, showing the name and surname of the claimant as the claimant along with the names of the physical persons who are claimants that they represent. At the bottom, it informs that an order ***NUMBER.2 was issued on ***DATE.2, and another link is provided to access its content.

FOURTH: According to the information provided in evidence by the Lawyer of the Administration of Justice of the Court that processed the matter, the respondent (referred to here as the respondent) obtained a copy of the videoconference of the preliminary hearing held on ***DATE.1, ordinary procedure ***NUMBER.1, upon request from their Attorney through access to the Arconte-Aurea portal, certified in the diligence of 20/07/2021, based on the provisions of the Civil Procedure Law, arts. 146, 147, and 187. It was also stated that the order ***NUMBER.2 of the same matter, issued on ***DATE.2, was notified to the respondent (referred to here as the respondent) on 29/07/2021.

FIFTH: On 16/10/2023, during the evidence practice, the video subject to the complaint remained on the YOUTUBE channel, as well as the instructive note, and the reference to order ***NUMBER.2.

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SIXTH: The respondent was sanctioned in a previous procedure PS/00485/2021 for violating Article 5.1.c) of the GDPR.

SEVENTH: In the written allegations to the initiation agreement, it is stated at the address ***URL.4 that the initiation agreement was exposed by the respondent, as they claim, due to its relevance and significance, containing the full identification of the complainant, through their name and surname, as well as the procedure in which the video would be viewed if it had not been removed, because it contains the URL.

FOURTH: On 18/02/2024, the appellant submitted a document in which they filed a request for reconsideration, stating:

The appeal they present is published and exposed at the link ***URL.5. Accessing it verifies that it is a PDF replica of this appeal. They also add that the resolution being appealed can be seen published on a domain ***URL.6 where they state that they have removed the name of the complainant “(...)” that identifies them.

If one accesses the link that offers the resolution, it is noted that, although the name of the complainant does not appear, it provides a view of (...) of the resolution, as well as the date, (...), and furthermore does not contain any information about this processing that is carried out, where there are personal data and information about them, making it as if they were exposing and identifying the complainant's data again in a new processing.

In this appeal, they also refer in their publication to the “unnamed (...) of the company Legal Eraser SL, Te Borrados, Honoralia.”

1) They request the annulment of the resolution because the AEPD cannot act against its own acts nor contradict its own statements, understanding that the AEPD “publishes on its own website, at: <https://www.aepd.es/areas-de-actuacion/internet-y-redes-sociales/eliminar-fotos-y-videos-de-internet>, a document, which with four very minor modifications, since September 2023, indicates that: The Spanish Agency for Data Protection will safeguard your right to deletion if, after having contacted the

person responsible by a means that allows it to be accredited, said data controller has not responded to you within the established period or if you consider that the response has not been adequate, so you may file a complaint in this regard...

Whenever circumstances allow, it is advisable to contact the person who uploaded the content requesting its deletion.

If you do not achieve your objective, you should necessarily request the deletion from the platform that provided the means for publication, that is, the social network or video portal where those images or videos have been published, proving your identity and indicating which links contain the data you wish to cancel. The company must resolve the deletion request within a maximum period of one month from the receipt of the same. After that period, if they do not expressly respond to your request or if you consider that the response is unsatisfactory, you may file the corresponding complaint with this Agency, attaching the documentation proving that you have requested the deletion from the entity in question.

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This point is very important, as if you cannot prove to us that you have first exercised your right to erasure before that company, we will not be able to assist you.”

The appellant states that “In the file being appealed, the claimant is not recorded as having ever addressed the respondent, nor to YOU TUBE, as is required and clearly published on its own website by the AEPD.”

It indicates that preferential treatment is being given to the claimant to the detriment of the appellant. It states that it still does not have its request for access to public information to the Information and Transparency Unit of the Spanish Agency for Data Protection submitted on 01/07/2024, which can be evidenced and must be included in this appeal. According to the appellant, it concerns:

“1st All data and references available from the AEPD regarding claims related to YouTube in any type of file or resolution, whether published in AEPD archives and records or not.

2nd From the above, in how many of them the claimant before the AEPD has not previously addressed the respondent, in how many has not previously addressed YouTube, or Google, as is required, and in how many the AEPD has addressed YouTube, or Google, to request the removal of content, in whole or in part.

3rd From all the above, in how many occasions has a claim before the AEPD related to YouTube been inadmissible or dismissed, and in how many has the AEPD upheld it, sanctioning or not the respondent, but the Contentious-Administrative Chamber of the National Court has upheld an appeal annulling the AEPD's resolution for the primacy of the right to freedom of expression and freedom of information, as is the clear case of judgment SAN 1702/2012 Rapporteur Hon. Mr. D. DIEGO CORDOBA CASTROVERDE which is fully published at ***URL.7”

It adds that “the motivation for its request for access under the Transparency Law 9/2013 of 09/12 is because the AEPD contradicts what it publishes on its own website, at <https://www.aepd.es/areas-de-actuacion/internet-y-redes-sociales/eliminar-fotos-y-videos-de-internet>.”

It alleges arbitrariness for having admitted the claim without complying with the requirements, and requests that the procedure be suspended until GOOGLE or YOU TUBE resolves the claimant's requests, considering the arbitrariness that favors the censoring business, asking for a report from GOOGLE and YOU TUBE regarding what has already been censored against the claimant here at the request of the claimant and other representatives of their company.

2) It indicates that on 02/04/2024 it has provided proof of compliance with the measures imposed on it in the resolution, without having received a response. It again submits a copy of the mentioned compliance.

3) It reiterates that SAN 1702/2012 would be applicable, which would protect the freedom of expression and information of the appellant and the lack of consent of the affected parties is justified.

4) It states that the fine, besides being undue and unjust, is disproportionate (...), adding that there

was never any personal harm, considering the Guidelines 4/2022 on the calculation of administrative fines contemplated in the GDPR, adopted on 24/05/2023, urging a review and adjustment of the amount of the sanction.

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(...)

5) Additionally, it requests:

- the name and surname of the person responsible for the page

<https://www.aepd.es/areas-de-actuacion/internet-y-redes-sociales/eliminar-fotos-y-videos-de-internet>, considering the contradictory criteria of the AEPD regarding the prior complaint and the mandatory request to YOU TUBE that is not included in the file.

- That the result of the pending transparency request be included, which affects its right to defense that it claims to have requested on 7/01/2024.

- Finally, that, after the resolution of the appeal, it be provided with a complete copy of the entire file along with the resolution.

FIFTH: On 3/03/2024, another document from the appellant was received requesting that it be included in EXP202205446, as “spam,” from the complainant, who reports as interested in not receiving more SPAM. It provides a printout of:

- three emails from HONORALIA to a domain address ***URL.6, two dated 30/05/2023, and one dated 1/03/2024 containing news.

SIXTH: On 8/03/2024, a third document from the appellant was received in which it requests that it also be added to the file. As an attachment, it requests the incorporation of the resolution issued on 6/03/2024 by the AEPD's Information and Transparency Unit regarding its request for the right of access to public information dated 8 and 10/01/2024.

In it, it is indicated:

- The data processing collected by YOU TUBE is the responsibility of GOOGLE IRELAND LIMITED with its main establishment in the EU located in Ireland, which is the supervisory authority responsible for processing such complaints, therefore this entity is competent and the AEPD lacks jurisdiction over the matter.

- Details are provided regarding the complaints received directed to the aforementioned responsible party and those that were sent to the cited authority.

- In the last point it is indicated:

“Regarding the request for information about the complaints in which the complainant did not address the respondent before filing the complaint, we inform you that this is an essential requirement in the case of complaints related to the exercise of the rights recognized in Articles 15 to 22 of the GDPR and, therefore, these would not have passed the aforementioned preliminary analysis before being sent to the competent protection authority.”

SEVENTH: On 11/03/2024, another document was submitted indicating that “it is arbitrary” not to be able to name the (...) of Legal Eraser SL in the same way that the lawyer can be named,” whose judgment is attached, to be taken into account in the resolution.

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This is a copy from the CENDOJ of the judgment of the Supreme Court dated 21/12/2023, Administrative Litigation Chamber, appeal for cassation 7041/2022, against the resolution of 14/12/2020 by the Director of the AEPD regarding the filing of a complaint related to the exercise of the right to erasure of links in the GOOGLE search engine, which “refer to news published in various media and blogs, in relation to the summons of the appellant (...) to testify (...)”. Furthermore, the

judgment nominatively designates the Attorney and the Lawyer of the party filing the cassation appeal. The National Court dismissed the appeal filed by the complainant, confirming the filing in the judgment of Section 1 of the Administrative Litigation Chamber dated 24/06/2022, appeal 202/2021, against which the complainant filed a cassation appeal.

The summary of the case is included in the legal basis V:

“The background of the present cassation appeal, which we have previously summarized, consists of the fact that the appellant requested the entity 'Google Spain S.L.' to remove from the search engine nine links that he considered harmed his reputation and good name. These are pieces of information published on different websites by various media outlets that report on the summons of the appellant (...) to testify (...), in his capacity as (...) of a company that was contracted by the Popular Party, which was then under investigation. The information also included the fact that the appellant's wife held a high position in the structure of the aforementioned political party. Additionally, the links refer to information about the appellant's professional change as he moves to develop his professional activity in the recycling sector.”

In the doctrine established in the Supreme Court judgment, it is indicated:

“The right to information and the public interest in truthful information regarding the testimony of the appellant as (...) of a service company in a significant criminal operation affecting a national political party and his subsequent change of professional sector prevails over the right to be forgotten claimed, as there is a current public interest in accessing the manner and details of the investigation of serious criminal acts that have a manifest impact on public opinion, and as the position as a witness in a criminal case does not contain a pejorative content or a negative or harmful connotation for the interested party, in addition to the concurrent interest of the markets in knowing the professional profiles of those who engage in business activities.”

The judgment determines that “the cassation appeal filed is not admissible.”

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve the present appeal, in accordance with the provisions of Article 123 of Law 39/2015, of 1/10, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

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II

Regarding compliance with the measures required in the resolution, a procedure

***PROCEDIMIENTO.1 was opened, in which it is recorded that a written communication was received from the appellant informing that they had adopted the necessary measures to prevent the reoccurrence of the events that led to the infringement committed. This Agency acknowledged receipt of the same and sent a communication dated 9/02/2024.

However, compliance with the measure must continue since the publication of the resolution (...), after their compliance letter, could lead to a new infringement, and thus, they are invited to (...) to avoid incurring again in the same events following that communication.

III

Regarding the information provided on the AEPD website:

<https://www.aepd.es/areas-de-actuacion/internet-y-redes-sociales/eliminar-fotos-y-videos-de-internet>, it states “last modification 7/09/2023”, indicating that: “The dissemination of images or videos published on different internet services without legitimate grounds to process this data of yours, especially on social networks, is a matter frequently raised before the Agency. The General Data Protection Regulation recognizes individuals' exercise of the right to erasure.”

In the following paragraph, it establishes the conditional that the AEPD will safeguard “your right to erasure”, “if...” after you have contacted the person responsible by a means that allows for verification,

and that person responsible for data processing has not responded within the established timeframe or if you believe that the response has not been adequate, so you may file a complaint in this regard.” It is implied that this information refers to the case of exercising the right to erasure, which as such is a power of the claimant; outside of this situation of exercising such a right, it is not logically specified that a complaint can also be filed, but the regulation expressly provides for it. The appellant believes that it is deduced from this information that it is a mandatory requirement, resulting in their opinion, that it is obligatory to first request the responsible party to erase the data, and, furthermore, that technological operators have tools for erasure, so they must also be addressed.

That is to say, it reiterates in another way what occupied a long space in the response to the allegation in the file. It would be, as a result of the thesis defended by the appellant, the legal obligation for the claimant to first and necessarily submit to the data processing responsible a written request for the removal of the content, as a mandatory exercise of the right to erasure, in this case, of a video and some documents below the video, as well as the same documents located at an address of the respondent, as an imperative scheme.

According to the appellant's thesis, this would imply as a consequence a sort of prior route that would condition the corrective power of the supervisory authority, deducing that, by default, all treatments would be legitimate. Given that the objectives of the GDPR and the LOPDGDD are to guarantee a high level of protection for individuals while eliminating obstacles to the circulation of personal data, the underlying reasoning cannot be accepted, and for the response to this allegation, we refer to the reasoning contained in the LEGAL GROUNDS IV of the contested resolution.

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Despite this, it is established that the now-appellant was informed of the claim before the initiation of the sanctioning procedure, stating among other circumstances that there were no personal data of the claimant and that the intention was to censor the information from the business censoring LEGAL ERASER SL. The result was that no precautions were taken regarding the video presented, along with the associated documentation, which continued until the ordering of measures in the resolution now being appealed.

As a consequence, the cases that the appellant intended to assert as precedents for access to the requested assumptions from the Transparency Unit do not start from the same basis as the event that occurred in the present case, in which it is clear that no right is being exercised. Therefore, the information provided on the AEPD website is also not like that of the case file being appealed.

Finally, it should not be forgotten that neither in the video, nor in the documents attached to it, or in those originating from the website of the respondent, all containing personal data of the claimant, was there any information regarding the processing, and therefore no grounds for exercising any rights. Regarding the expansion of the appellant's second submission on the issue of spam, it introduces a new topic that should, if deemed appropriate, be presented as a new claim as it bears no relation to the present appeal.

IV

In relation to the statements concerning the processing carried out based on the exercise of freedom of expression and information, and the allegation of 11/03/2024, providing a copy of the Supreme Court's cassation ruling of 21/12/2023, regarding the conflict between the right to data protection (right to be forgotten, suppression of Article 17 of the GDPR) due to the removal of nine links from the GOOGLE search engine that refer to various media outlets, against the right to information, it should be clarified that in the resolution now being contested, it is made clear that it is possible to inform about the doctrine established by the judge while respecting the availability of the data by its owner, according to the assessment of the principles of necessity and proportionality of the processing in relation to the purposes to be carried out. It is made clear that, in this case, the physical medium of the videoconference used by the appellant to express his ideas or thoughts and inform, originally, comes from a procedural act between the parties, regarding the right to honor, of a private nature, and has

been used outside the reasonable expectations of the data owner in the video channel, along with documentation that was presented in that process, which also appeared on the appellant's website. This aims to emphasize that the case analyzed here with the ruling provided does not have similar essential base elements for comparison. In the present case, as indicated in the resolution when comparing it with the other ruling ECLI: ES:AN:2012:1702, circumstances that are also highlighted in the resolution, the assumptions allow for the same conclusions, which are stated in the legal basis IV, understanding: "In this case, the origin of the video comes from the Court due to a private dispute, without a reasonable expectation of seeing their data exposed on the YOU TUBE channel, the claimant being in the course of exercising his profession, and the purpose, moreover, in the present case is to underline the defective approach of the claim, not the behavior of the person as in the case of the ruling. Furthermore, in the ruling, it dealt with public officials linked to important positions at the University, acting in judicial processes as experts. The purpose being addressed here is not to denounce some...

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abnormal facts, but rather a particular matter by a professional in which they can undoubtedly be informed without exposing the data and identifying the claimant, nor is animosity towards their business a justification for exposing their data and identifying them also in a combined manner, not through one channel, but through several: video and documents.

In this specific case, there exists, moreover, in the performance of professional defense functions in a particular matter, an absence of public relevance of the claimant, all elements that, when combined, imply that to disclose the information regarding the causes of the filing of a defective lawsuit, it is not necessary to disclose their personal data of voice, image, combined with support from additional data presented not only on the YOU TUBE video channel but also in links to their own page. The use of the video in this sense and for this purpose is what constitutes the agreed attribution, clearly differentiated from the alleged judgment.

In summary, it can be indicated that the resolution took into account the purpose of the videoconference as a procedural act in the course of a judicial procedure and that any subsequent processing must comply with the principles, among them the one that guarantees the limitation of purpose. The resolution indicated that the purpose intended by the appellant of freedom of information and expression is limited by a series of obligations and guarantees that take into account the risks of processing. Also, in summary, that from the analysis of the information with the personal data contained in the videoconference and in the documents presented alongside the video on the YOU TUBE Channel and on their website, it was concluded that, to inform about the doctrine of the matter, it could be done without any reflection of the claimant's personal data, being means that are dispensable as happens in the dissemination of judgments. All of this was reflected in the legal basis III of the resolution.

V

Regarding the application of the "Guidelines 4/2022 on the calculation of fines under the GDPR," adopted on 24/05/2023, it should be indicated that they are adopted to harmonize the methodology used by the supervisory authorities when calculating the amount of the fine, and that they complement those adopted on 3/10/2017 "on the application and setting of administrative fines for the purposes of the GDPR," which focus on the circumstances under which a fine is imposed.

The approval of such Guidelines by the European Data Protection Committee, an entity created under the GDPR to act independently, with, among other functions, ensuring the coherent application of the GDPR (art 70), empowers it to issue such Guidelines, as mentioned in its article 70.1.k).

For the application of the Guidelines 4/2022 invoked in the present case, at least two elements must be taken into account:

The first is that, in the present case, the infringement being appealed appears related to the exposure of a video of a procedural act held on ***DATE.1, with the video obtained by the respondent on

20/07/2021, video and documents that contained personal data that remained exposed upon issuing the resolution. The aforementioned Guidelines were adopted on 24/05/2023, so it would involve applying such interpretative criteria that would retroactively address events occurring before their adoption. For this, the appellant only details that they should be considered because "there was never any personal harm." Secondly, it is that the aforementioned Guidelines in their section 1.3.

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"Scope" determines that data controllers will not be held liable when they are natural persons and do not act as businesses, as is the case here.

Regarding the concept of damages, considering paragraph 146, first, third, and sixth sentences, of the GDPR:

"The controller or the processor must compensate for any damages that a person may suffer as a result of processing in violation of this Regulation. [...] The concept of damages must be interpreted broadly in light of the case law of the Court of Justice [of the European Union], so that the objectives of this Regulation are fully respected. [...] Data subjects must receive full and effective compensation for the damages suffered. [...]"

As a consequence of a violation of the GDPR, damages can be both material and immaterial. In any case, if the appellant did not suffer any personal harm, this is not necessary to infringe Article 5.1.b) which was declared violated and which constitutes an objectively evident interference in the interests of the person, and the temporary deprivation of the ability to dispose of their own data due to publication on YOU TUBE for such a long period is sufficient to objectively derive harm. In any case, there is no evidence of unequal treatment in similar cases where a violation of data protection regulations is claimed through video exposure on a platform such as the one mentioned, with the amount duly justified.

Regarding the adjustment of the amount of the violation, (...) it must combine the deterrent nature with the proportional and effective nature that fines have for compliance with data protection regulations, relating it to the nature, severity, and consequences of the violation. In this case, given the long duration of the (...) alleged, it would allow for proportionality to apply a reduction in the amount, although the appellant must take extreme precautions in data processing to avoid continuing to openly identify what has been prohibited, whether through direct identification or making it identifiable, along with compliance with the principles of the GDPR, among which transparency in information about personal data is paramount.

Considering the circumstances noted by the claimant, a reduction of the amount of the sanction to a total of 5,000 euros is deemed proportional.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO PARTIALLY ACCEPT the appeal for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on 01/16/2024, for a violation of Article 5.1.b) of the GDPR, in accordance with Article 83.5.a) of the GDPR, classified as very serious for the purposes of prescription, in accordance with Article 72.1.a) of the

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LOPDGDD, agreeing to reduce the amount of the administrative fine, which is set at 5,000 euros.

SECOND: NOTIFY this resolution to A.A.A.

Against this resolution, which concludes the administrative process, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in

Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of the aforementioned legal text.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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